

THE U.S. NONPROFIT SAFEGUARDING CROSSWALK PROJECT

Organizational Safeguarding Policy Template

Prevention of Sexual Exploitation, Abuse, and Harassment (PSEAH)

Series	Crosswalk Project Implementation Toolkit — Tool 1
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Companion tools	Tool 2 — Safeguarding Self-Assessment; Tool 3 — Adopter Feedback Form; Tool 4 — Safeguarding Training Outlines
Companion research	Gul, S. (2026). <i>Safeguarding Without a Baseline: A Crosswalk from the IASC Six Core Principles to United States Domestic Legal and Regulatory Anchors</i> (Module 1 of the U.S. Nonprofit Safeguarding Crosswalk Project). Zenodo. DOI: https://doi.org/10.5281/zenodo.22022939
Project archive	https://doi.org/10.5281/zenodo.22023886 — permanent open-access record of the Implementation Toolkit
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Scope note. *This template is an operational policy resource, not legal advice. It is designed to complement — never replace — the laws of your state, including mandatory-reporter and background-check requirements. Organizations should have the completed policy reviewed by counsel licensed in their state before adoption. The author is not admitted to practice law in the United States.*

How to Use This Template

This template converts the findings of the Crosswalk Project's published research into a ready-to-adopt organizational policy. The research (Module 1) mapped the thirteen obligations of the international humanitarian sector's safeguarding standard — the IASC Six Core Principles Relating to Sexual Exploitation and Abuse — against United States law, and found that no obligation is covered by a requirement of general application that both reaches nonprofits as a class and protects the people they serve. This policy is built to close that gap at the organizational level, using design requirements derived directly from the research: it is beneficiary-facing, preventive, portable across service areas, specified at the operational level, and anchored in board-level accountability.

Three steps:

- **Complete every bracketed field** shown in **[gold brackets]**, adapting the options to your organization's size, staffing, and beneficiary population.

- **Delete the guidance boxes** (shaded paragraphs marked "Guidance") once the section is complete — they are instructions to you, not policy text.
- **Adopt the policy by board resolution** using the adoption block in Section 10, and calendar the annual review date.

Scope of this template. Safeguarding is an organization's duty to ensure that its personnel, operations, and programs do no harm to the people it serves — covering physical harm, emotional harm, and neglect as well as sexual exploitation, abuse, and harassment. This template establishes that general safeguarding architecture — screening, conduct standards, training, reporting, response, records, and board accountability — with its conduct provisions (Section 3) specified for the PSEAH pillar, where international practice is most fully developed. Organizations adopting it build protective infrastructure that reduces the risk of harm of every kind.

Sections 1–3 are the minimum viable policy for a very small, all-volunteer organization. Sections 4–9 complete the whole-of-organization system and should be adopted by any organization with staff or regular volunteers in contact with beneficiaries.

SAFEGUARDING POLICY OF [ORGANIZATION NAME]

Adopted by the Board of Directors on [date] · Next scheduled review: [date + 12 months]

1. Purpose and Scope

[Organization Name] ("the Organization") exists to serve [describe beneficiary population — e.g., refugee families, youth, survivors of domestic violence, food-insecure households]. Many of the people we serve depend on us for access to assistance, and that dependence creates a power differential between our personnel and our program participants. The purpose of this policy is to ensure that this power is never misused: that every person who receives our services is protected from sexual exploitation, abuse, and harassment by the people entrusted to deliver them.

This policy applies to every person acting on the Organization's behalf: board members, employees, volunteers (regular and episodic), interns, contractors, and consultants (together, "personnel"). It applies during program activities and outside them, wherever conduct involves a program participant. It protects program participants and beneficiaries. Workplace conduct between personnel — including harassment of one staff member by another — remains governed by the Organization's personnel policies and applicable employment law, which this policy does not replace.

Guidance (delete after completing): Keep this section short. The two sentences that matter to an external reader — including a funder or evaluator — are the recognition of the power differential and the statement that the policy is beneficiary-facing, covering conduct toward the people you serve rather than workplace conduct between employees.

2. Definitions

Safeguarding means the responsibility of the Organization to ensure that its personnel, operations, and programs do no harm to the people it serves and do not expose them to the risk of exploitation, abuse, or harassment.

Sexual exploitation means any actual or attempted abuse of a position of vulnerability, differential power, or trust for sexual purposes, including profiting monetarily, socially, or politically from the sexual exploitation of another.

Sexual abuse means actual or threatened physical intrusion of a sexual nature, whether by force or under unequal or coercive conditions.

Sexual harassment means unwelcome sexual advances, requests for sexual favors, and other verbal or physical conduct of a sexual nature directed at a program participant.

Program participant / beneficiary means any person who receives, seeks, or is eligible to receive services or assistance from the Organization, and includes family members present in service settings.

Safeguarding Focal Point means the named person designated under Section 6 to receive and act on safeguarding reports.

Child means any person under the age of 18, regardless of the age of majority or age of consent in the applicable state.

Guidance (delete after completing): These definitions are anchored, not invented, and the operative text is intentionally left uncited so the policy reads as your organization's own document. Their sources are recorded in the Appendix ("Definitional basis"): sexual exploitation and sexual abuse follow the UN Secretary-General's Bulletin ST/SGB/2003/13, § 1; child applies the international under-18 rule regardless of state age-of-majority or age-of-consent laws; sexual harassment uses the operative wording of U.S. equal-employment practice (29 C.F.R. § 1604.11(a)), deliberately redirected to program participants, whom employment law's harassment protections do not reach.

3. Code of Conduct: Prohibited Conduct

The following standards adapt the six core principles of the international safeguarding framework to the Organization's domestic operations. They are conditions of employment, board service, and volunteering. Each numbered standard is an organizational rule: it applies regardless of whether the conduct would also violate criminal or civil law, and it applies in every state in which the Organization operates.

3.1 Sexual exploitation and abuse constitute gross misconduct. Any act of sexual exploitation or sexual abuse of a program participant by any of the Organization's personnel is grounds for immediate termination of employment, contract, board service, or volunteer engagement.

3.2 Sexual activity with children is prohibited. Sexual activity with any person under 18 is prohibited regardless of the local age of consent. A mistaken belief about a person's age is not a defense in the Organization's disciplinary proceedings.

3.3 Exchange of anything for sex is prohibited. The exchange of money, employment, goods, or services for sex or sexual favors is prohibited. This expressly includes conditioning, delaying, or withholding assistance that a program participant is already entitled to receive. A participant's entitlement may never be the medium of exchange.

3.4 Sexual relationships with program participants are prohibited. Sexual relationships between personnel and adult program participants are prohibited while the service relationship exists, because the imbalance of power inherent in that relationship undermines the possibility of meaningful consent. This rule applies to all personnel, whether licensed professionals or not, including case managers, intake workers, drivers, mentors, and volunteers.

3.5 Personnel must report concerns. Any of the Organization's personnel who develops a concern or suspicion of sexual exploitation, abuse, or harassment by a colleague, whether within this Organization or at a partner or referral organization, must report it through the mechanism established in Section 6. Reporting in good faith will never result in retaliation. This internal duty is in addition to, and never replaces, any mandatory reporting duty under **[state]** law.

3.6 Everyone maintains the preventive environment. All personnel are obliged to help create and maintain an environment that prevents sexual exploitation, abuse, and harassment. Managers and board members carry responsibility for building and resourcing the systems, including screening, training, reporting, response, and monitoring, set out in Sections 4 through 9.

Guidance (delete after completing): Standards 3.2 and 3.3 deliberately set the organizational rule higher than the legal minimum in most states: state ages of consent vary between 16 and 18, and no general law prohibits conditioning assistance on sexual favors where no coercion can be proven. Adopting the stricter rule internally is the point — it is what the international framework requires and what state law does not.

4. Screening and Recruitment

4.1 Every position, whether paid or volunteer, is classified at recruitment as either a contact role (unsupervised or recurring contact with program participants, or access to their personal data) or a non-contact role. The classification is recorded in the position description.

4.2 Before any person begins a contact role, the Organization completes: (a) a check of the National Sex Offender Public Website (NSOPW.gov), which is free of charge; (b) a criminal history check meeting the requirements of **[state]** law and any funder conditions; (c) at least two reference checks, each asked directly whether they have any safeguarding concern about the candidate; and (d) a review of unexplained gaps in work or volunteer history.

4.3 Every offer of employment, board appointment, or volunteer engagement is conditional on written acknowledgment of this policy. Interviews for contact roles include at least one values-based question about boundaries with program participants.

4.4 Screening is repeated every **[two/three]** years for personnel in contact roles.

Guidance (delete after completing): A free NSOPW check plus structured reference questions is achievable for an all-volunteer organization with no budget. If your organization holds AmeriCorps or similar federal funding, the National Service Criminal History Check (45 C.F.R. § 2540.204) sets the mandatory floor for covered positions — do not go below it.

5. Training

5.1 All personnel — including board members, contractors, and volunteers, consistent with their roles — complete safeguarding orientation before beginning work, covering: what constitutes sexual exploitation, abuse, and harassment; the conduct standards in Section 3; how to recognize warning signs; and how to report, internally and to state authorities.

5.2 Personnel in contact roles complete a refresher at least annually. The Safeguarding Focal Point and all managers complete additional training on receiving reports and coordinating response.

5.3 Personnel who are mandatory reporters under **[state]** law are told so in writing at onboarding, together with how, where, and within what timeframe to report.

5.4 Training completion is documented: date, content covered, and attendance, retained per Section 9.

Guidance (delete after completing): The training model here follows the most fully specified federal safeguarding training rule (42 C.F.R. § 483.95, long-term care), which pointedly extends training to volunteers. Free, open-access training outlines (Tool 4 in this series) are available.

6. Reporting Mechanism

6.1 Focal point. The board designates a Safeguarding Focal Point — currently **[name, role]** — and an alternate, **[name, role]**, for reports concerning the Focal Point or executive leadership. The Focal Point need not be an executive or a safeguarding specialist: the authority to act on any report — including a report concerning a manager or executive — is conferred by the board's written designation itself, which carries a direct reporting line to the Board Chair. Before assuming the role, the Focal Point and alternate complete the training required by Section 5.2, and the designation records the working time and access to records the role requires.

6.2 Channels open to everyone. Reports may be made by any person — personnel, program participants, family members, or the public — orally, in writing, or anonymously, through: **[list channels: direct contact with Focal Point; dedicated email; phone/voicemail; physical suggestion box; web form]**. Information about how to report is posted in service locations and provided to program participants in plain language, in **[languages used by your participants]**, at intake.

6.3 No retaliation. Retaliation against any person for reporting a concern in good faith, or for participating in an inquiry, is itself gross misconduct under Section 3.

6.4 Acknowledgment. The Focal Point acknowledges non-anonymous reports within **[two]** business days and records every report in the safeguarding log. The log records, for each report: the date received, the action taken, and the outcome.

Guidance (delete after completing): Section 6 is modeled on the grievance-official mechanism at 42 C.F.R. § 483.10(j) — the most fully specified reporting channel in U.S. law, currently required only of nursing facilities. The essential features to preserve when adapting: a named person, anonymous filing, defined timeframes, and channels available to beneficiaries, not just employees.

Do not confuse focal point's seniority with suitability. The recurring focal-point failure across the sector is the "letterhead appointment" — a person named to the role without training, time, or real authority. This section is drafted so the role works without a specialist on staff: authority comes from the board's written designation, competence from the Section 5.2 training (deliverable internally; the Project's training outlines, Tool 4), and capacity from the time and access the designation records. Choose the person participants and staff most trust.

7. Response and Investigation

7.1 Immediate safety. On receiving a report, the Focal Point's first obligation is the safety of the person affected: any immediate protective step, including suspending the implicated person's contact with participants pending inquiry, is taken without waiting for the inquiry to conclude. Interim measures are precautionary, not disciplinary.

7.2 External reporting first. Where a report indicates possible abuse of a child or vulnerable adult, or any criminal conduct, the Organization reports to **[state agency / law enforcement]** within the timeframe required by **[state]** law. Internal inquiry never delays or substitutes for a legally required external report, and the Organization does not conduct its own investigation of possible criminal conduct beyond what is needed to act on employment matters.

7.3 Survivor-centered handling. The person affected is treated with dignity: informed of what will happen next, offered referral to **[local advocacy, medical, and counseling services]**, and never required to confront the person complained about. Confidentiality is maintained on a strict need-to-know basis.

7.4 Inquiry and outcome. For matters handled internally, the Focal Point (or an external reviewer where impartiality requires) conducts a documented inquiry and reports conclusions to **[Executive Director / Board Chair]**. Substantiated violations of Section 3 result in consequences up to and including termination, in accordance with Section 3.1.

7.5 Partner organizations. Where a concern involves personnel of a partner, subgrantee, or referral organization, the Focal Point conveys the concern to that organization's designated safeguarding contact (or leadership), and records that it did so, in addition to any external reporting duty.

8. Working with Partners

8.1 Before entering a partnership, subgrant, or recurring referral arrangement involving contact with the Organization's program participants, the Organization informs the partner of the standards in Section 3 and obtains a written undertaking that the partner accepts equivalent standards for its own personnel.

8.2 Failure by a partner to maintain preventive measures, or to act on reported concerns, is grounds for terminating the arrangement.

9. Accountability, Records, and Review

9.1 Board ownership. The board of directors owns this policy. It receives a safeguarding report at least **[annually / semi-annually]** covering: number and type of reports received, training completion rates, screening compliance, and any policy exceptions.

9.2 Records. Safeguarding records — reports, inquiries, screening confirmations, and training logs — are retained securely for at least **[three]** years, with access restricted to the Focal Point and **[designated roles]**.

9.3 Annual review. The board reviews this policy every 12 months and after any substantiated incident, and records the review in its minutes.

9.4 Honest references. Where a person's engagement ended following a substantiated safeguarding violation, the Organization will not provide a reference that conceals that fact, subject to advice of counsel.

10. Adoption

Adopted by resolution of the Board of Directors of **[Organization Name]** on **[date]**.

Board Chair — name, signature, date	Executive Director — name, signature, date
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Appendix — How This Policy Maps to the International Standard

Each section of this policy operationalizes specific obligations of the IASC Six Core Principles Relating to Sexual Exploitation and Abuse (adopted 2002; revised 2019), as decomposed into thirteen obligation elements in the companion research (Module 1, Appendix A). The right-hand column identifies the structural gaps in U.S. law, by gap code, that the section closes at the organizational level. This mapping allows funders, evaluators, and boards to verify coverage line by line.

Definitional basis (Section 2). The definitions in Section 2 of sexual exploitation and sexual abuse adopt the United Nations Secretary-General's Bulletin ST/SGB/2003/13, § 1 — the definitional baseline on which the Six Core Principles rest. The definition of child applies the international rule (ST/SGB/2003/13, § 3.2(b)): protection at 18, regardless of the age of majority or age of consent in the applicable state. The definition of sexual harassment takes its operative formulation from United States equal-employment practice (29 C.F.R. § 1604.11(a)) and applies it to program participants — a deliberate extension, documented in the companion research (Module 1, SCP-3.1), because Title VII's harassment protections attach to the employment relationship and do not reach the people an organization serves. Safeguarding, program participant, and Safeguarding Focal Point are operational terms defined for this policy.

How to read this table. Read each row, left to right, as one sentence: *where the rule lives in this policy → which international obligation it fulfils → which precise elements of that obligation → which gaps in U.S. law the section fills for your organization*. The SCP numbers identify the thirteen obligation elements of the Six Core Principles as decomposed in the companion research: the first digit is the principle, the second is the element (so SCP-1.2 is the second element of Principle 1).

The first row, read aloud: *"Sections 3.1 and 7.4 make abuse of a participant a dismissal offense with real, recorded consequences. That fulfils Principle 1 of the international standard (elements SCP-1.1 and*

SCP-1.2). By adopting these sections, the organization gives itself a rule that U.S. law imposes only on a few licensed sectors (G3), never spells out operationally (G5), and never places on organizations at all (G6)." Every other row works the same way.

Key to the gap codes (defined in Module 1, §5): **G1** — the duty applies only if the organization takes a particular funding stream; **G2** — the law protects a different group than the program participants safeguarding exists to protect; **G3** — coverage is confined to a licensed or certified sub-sector; **G4** — the duty triggers only after suspected harm, rather than requiring prevention in advance; **G5** — the obligation may exist in principle, but no law specifies the organizational system that delivers it; **G6** — the duty binds an individual rather than the organization, so there is no institutional accountability.

Policy section	IASC Core Principle	Elements	Gaps addressed (Module 1 codes)
3.1 Gross misconduct; 7.4 Consequences	Principle 1 — SEA as grounds for termination	SCP-1.1, SCP-1.2	G3 sub-sector gap; G5 operationalization; G6 duty placed on the organization
3.2 Children; no mistake-of-age defense	Principle 2 — absolute protection of under-18s	SCP-2.1, SCP-2.2	G1 state-by-state variance; G5; G6 — single internal rule at 18, everywhere
3.3 No exchange for sex, incl. entitled assistance	Principle 3 — no transactional exchange	SCP-3.1, SCP-3.2	G2 population gap; G5; G6 — covers the aid relationship U.S. law does not reach
3.4 No relationships with participants	Principle 4 — power-differential relationships	SCP-4.1	G3 — extends beyond licensed roles to all personnel; G5; G6
3.5, §6, 7.5 Reporting duty and mechanism	Principle 5 — internal reporting via established mechanisms	SCP-5.1, SCP-5.2, SCP-5.3	G1, G2, G3, G4 — a preventive, beneficiary-facing channel with a cross-organization pathway
3.6, 4, 5, 8, 9 Preventive environment and systems	Principle 6 — environment, code promotion, manager duty	SCP-6.1, SCP-6.2, SCP-6.3	G2, G3, G4, G5 — screening, training, partner flow-down, and board accountability specified in advance

Design requirements. Module 1 (§8) concludes that an adequate domestic baseline must be cross-sectoral rather than funding-conditioned; beneficiary-facing rather than employee-facing; portable across sub-sectors; preventive rather than incident-triggered; specified at the operational level; and organizational, with board and executive accountability. This template is built to satisfy all six requirements for an adopting organization.

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